

[doc. web n. 10021452]
Provision of April 24, 2024
Register of provisions
No. 246 of April 24, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia, and Attorney Guido Scorza, members, and
Counsel Fabio Mattei, Secretary General;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament
and of the Council, of April 27, 2016 (hereinafter, "Regulation");

HAVING REGARD TO the Code regarding the protection of personal data, containing provisions for
the adaptation
of the national legal system to Regulation (EU) 2016/679 (Legislative Decree No. 196 of June 30,
2003, as
amended by Legislative Decree No. 101 of August 10, 2018, hereinafter "Code");

HAVING REGARD TO the complaint filed pursuant to Article 77 of
the Regulation by Mr. XX against C.I.EL.
S.p.A.;

HAVING EXAMINED the documentation on file;

HAVING REGARD TO the observations made by the Secretary
General pursuant to Article 15 of the Guarantor's regulation No. 1/2000;

REPORTING Prof. Pasquale Stanzione;

PREMISE

1. The complaint against the company and the investigative activity.
On July 7, 2022, a complaint was filed by
Mr. XX before the Authority against C.I.EL. S.p.A. (hereinafter, the Company),
for which the complainant had worked following a
contract for temporary employment with Life in S.p.A., alleging
presumed violations of the Regulation regarding the exercise of
the right of access to training certificates.

On November 28, 2022, the Office sent
an invitation to the Company, which, on December 12, 2022, provided its response.
In this response, the Company requested "LOXAM
ACCESS S.r.l., as the entity that provided such
training and issued the related certificates, to urgently
send to [the complainant] the documentation requested by
him (and attributable to him)."

No further response was sent by the Company in this regard.

On December 20, 2022, the complainant informed
the Department that: "The company Loxam conducted only
one in-person course, which took place in Chieti,
entitled: operators of elevating platforms. For this course, in my opinion,
in addition to the certificate that has been received, a
license should also have been issued. In fact, the instructor
from Loxam took a photo on a white background that, according to him,
would have gone on the license itself. To date, however, the

certificates for the courses have not been received: - general safety course (remote), held by Eng. [...] responsible for safety at Ciel SPA; - PPE III category course by the company 'SIAPAE-Learning' on 03/23/22.”

On March 20, 2023, the Department sent a request for information pursuant to Article 157 of the Code, and on April 18, 2023, the Company, sending the response for the knowledge of the complainant as well, stated that:

- “on July 7, 2022, an email was received from [the complainant]; he requested that the certificates for the training courses he attended as well as the certificates related to medical examinations be sent to him. The Company, being legally obliged to retain them, immediately transmitted the medical certifications.

On the contrary, we did not possess the certificates because, following the termination of the relationship, considering therefore that the Company was no longer obligated to retain them as they contained sensitive data, they were deleted from the archive” (see note 04/18/2023, cited, p.1);

- “the company received on November 28, 2022, a PEC from the Privacy Guarantor; a copy of the certificates was requested. To respond to the request, C.I.EL. S.p.A. invited the companies that deal with training, on behalf of the same, to send the certificates to the employee” (see cited note, p. 1);

- “as far as we know, Loxam Access s.r.l. (holder of the course ‘Operator for the Use of Mobile Elevating Platforms’) promptly sent the certificate” (see cited note, p. 1);

- “the company SIAPA, with a note dated 03/21/2023, responding to the request of the undersigned dated 01/16/2023, sent the ‘master’ of the training course held in agile mode remotely to Eng. [from the Company], who proceeded to send it to the interested party on 03/30/2023” (see cited note, p. 1);

- “regarding the III Cat PPE course, the company SIAPA informed, with PEC dated 03/21/2023, that no certificate was issued in favor of the employee; moreover, in response to this, C.I.EL. S.p.A. deemed it appropriate not to send the employee in question to this course as he was already in possession of a valid certificate” (see cited note, p. 1);

- “it is also communicated that today a copy of the license requested by the employee was sent via PEC [...] on [20/03/2023]” (see cited note, p. 1).

On July 19, 2023, the Office carried out, pursuant to Article 166, paragraph 5, of the Code, the notification to the Company of the alleged violations of the Regulation found, regarding Articles 12 with reference to Article 15 of the Regulation.

Following the aforementioned notification, no defensive writings were submitted by the Company.

2. The outcome of the investigation.

2.1. Established facts and observations on the regulation.

the company” (see response of 28.6.2022).

2.3. Conclusion.

Based on the findings from the investigation, it is established that the Company, as the data controller, has failed to comply with the regulations regarding data protection, particularly concerning the exercise of the right of access, by not providing an adequate response to the request submitted by the complainant. This non-compliance constitutes a violation of the obligations set forth in the applicable data protection laws and regulations, specifically those outlined in the General Data Protection Regulation (GDPR).

3. Sanctions.

In light of the violations identified, the Garante may impose administrative fines and other corrective measures as provided for under Articles 83 and 84 of the GDPR. The severity of the sanctions will be determined based on the nature, gravity, and duration of the infringement, as well as any mitigating or aggravating factors that may be present.

4. Right to Appeal.

The Company has the right to appeal this decision before the competent judicial authority within the terms established by law. The appeal must be filed within the timeframe specified in the notification of this decision.

5. Final Provisions.

This document is issued in accordance with the provisions of the GDPR and other applicable laws on data protection. The Company is required to take immediate action to rectify the identified violations and ensure compliance with data protection obligations moving forward.

Date: [Insert Date]

Garante per la protezione dei dati personali

force at the company and considering that due to Privacy I cannot keep them on my Personal Computer.” Following this feedback, on June 28, 2022, the complainant again requested the delivery of the requested training certificates, expressly referring to Article 15 of the Regulation.

That said, it appears that the Company did not provide an adequate response to the complainant following the access request submitted by him: in the response of June 28, 2022, in fact, the Company, through its prevention and protection service officer, informed the complainant that it would proceed to delete the training certificates related to him since he “was no longer employed by the company.” This confirmed that it was in possession of the aforementioned certificates at the time of the request and, in any case, did not provide specific reasons as to why it could not issue the complainant a copy of the training certificates he had obtained and that it held.

On that occasion, the Company also did not inform the complainant, as required by Article 12, paragraph 4 of the Regulation, of the possibility, given the denial, to file a complaint with the Authority or appeal to the ordinary judicial authority. Only following the initiation of the investigation by the Authority did the Company clarify that it no longer possessed the requested certificates and took steps to recover them.

In particular, based on what was stated, the Company invited the companies that handle training for it to send the requested certificates to the complainant, and following this, as specified by the Company (which provided supporting documentation), it stated that “to our knowledge, the company Loxam Access s.r.l. (holder of the course ‘Operator of the Mobile Elevating Work Platform’) promptly sent the certificate. The company SIAPA, with a note dated 21/03/2023, responding to the request from the undersigned dated 16/01/2023, sent the ‘master’ of the training course held in agile remote mode to Eng. [...], who proceeded to send it to the interested party on 30/03/2023. As for the DPI 3 Cat. course, the company SIAPA informed, via certified email on 21/03/2023, that there was no certificate in favor of the employee; moreover, in response to this, C.I.E.L. S.p.A. deemed it unnecessary to send the employee in question to that course as he was already in possession of a valid certificate. It is also communicated that today a copy of the requested certificate is being sent to the employee via certified

email [of] [20/03/2023]" (see note 18/4/2023, pp. 1, 2).

The Company, therefore, violated Article 12 of the Regulation with reference to Article 15 of the Regulation. In particular, the Company did not provide an adequate response to the access request submitted by the complainant. This is true whether it was in possession of the training certificates at the time of the request (as seems to be indicated by the response of June 28, 2022, attached to the complaint) or whether it had already deleted them by that time (as indicated by the Company's statement made to the Authority, see response of 18.4.2023, "on July 7, 2022, an email was received from the [complainant] stating that the certificates were not in possession because, following the termination of the relationship, believing that the company was no longer obliged to retain them as they contained sensitive data, they were deleted from the archive").

In this regard, it is recalled that the training certificates of the worker contain personal data related to him, to which the interested party has the right to access pursuant to Article 15 of the Regulation. In this regard, the Guidelines 01/2022 on data subject rights – Right of access, EDPB, March 28, 2023, clarify that "In some cases, the personal data itself sets the requirements in what format the personal data should be provided" (see par. 5.2.5, point 155, unofficial translation "In some cases, the personal data itself defines the requirements of the format to be used").

In any case, if the data controller cannot or does not believe it is obliged to comply with a request to exercise rights (including, therefore, those to exercise the right of access), it must communicate to the interested party the specific reasons for the denial as well as the possibility of filing a complaint with the Guarantor or appealing to the ordinary judicial authority pursuant to Article 12, paragraph 4 of the Regulation. In this case, the Company did not follow the aforementioned conduct. Furthermore, as confirmed by the actions taken by the company during the investigation, it was able to recover (at least in part) the certificates related to the interested party and subject to a specific access request.

3. Conclusions: declaration of unlawfulness of the processing. Corrective measures pursuant to Article 58, paragraph 2, Regulation. For the above reasons, the Authority believes that the statements, documentation, and reconstructions provided by the data controller during the investigation do not allow for overcoming the observations notified by the Office with the act of initiation of the procedure and are therefore unsuitable to allow for the closure of this procedure, as none of the cases provided for by Article 11 of the Guarantor Regulation no. 1/2019 apply. The conduct carried out by the Company, which consisted of providing an inadequate response to the access request submitted by the complainant, is indeed unlawful, as outlined above, with

****Reference to Article 12 of the Regulation in relation to Article 15 of the Regulation.****

The violation, ascertained in the terms set out in the reasoning, cannot be considered "minor," taking into account the nature, the severity of the violation itself, the degree of responsibility, and the manner in which the supervisory authority became aware of the violation (Recital 148 of the Regulation).

The Authority also took into account the average level of severity of the violation in light of all relevant factors in the specific case, in particular the nature, severity, and duration of the violation, considering the nature, purpose, or aim of the processing in question as well as the number of affected individuals harmed by the damage and the level of damage they suffered.

The Authority also considered the criteria relating to the intentional or negligent nature of the violation and the categories of personal data affected by the violation, as well as the manner in which the supervisory authority became aware of the violation (see Article 83, paragraph 2, and Recital 148 of the Regulation).

Therefore, in light of the corrective powers granted by Article 58, paragraph 2 of the Regulation, and considering the specific case, an administrative monetary penalty is imposed pursuant to Article 83 of the Regulation, commensurate with the circumstances of the specific case (Article 58, paragraph 2, letter i of the Regulation).

In this context, considering, in any case, that the conduct has exhausted its effects, given that the Company has declared that it has provided the interested party with the training certificates of which it

managed to obtain a copy and has stated regarding "the DPI 3 Cat course that the company Siapa informed, via certified email on 21/03/2023, that there was no certificate in favor of the employee," the prerequisites for the adoption of further corrective measures under Article 58, paragraph 2, of the Regulation do not exist.

****4. Adoption of the injunction order for the application of the administrative monetary penalty and ancillary sanctions (Articles 58, paragraph 2, letter i), and 83 of the Regulation; Article 166, paragraph 7, of the Code).****

As a result of the proceedings, it appears that C.I.EL. S.p.A. violated Article 12 of the Regulation in relation to Article 15 of the Regulation. For the violation of the aforementioned provisions, the application of the administrative monetary penalty provided for by Article 83, paragraph 5, letter b) of the Regulation is foreseen, through the adoption of an injunction order (Article 18, Law 24.11.1981, No. 689).

It is deemed necessary to apply paragraph 3 of Article 83 of the Regulation, which states that "If, in relation to the same processing or related processing, a data controller [...] violates, with intent or negligence, various provisions of this regulation, the total amount of the administrative monetary penalty shall not exceed the amount specified for the most serious violation," the total amount of the penalty is calculated so as not to exceed the maximum penalty provided for by the same Article 83, paragraph 5.

With reference to the elements listed in Article 83, paragraph 2 of the Regulation for the purpose of applying the administrative monetary penalty and its quantification, considering that the penalty must "in any case [be] effective, proportionate, and dissuasive" (Article 83, paragraph 1 of the Regulation), it is represented that, in this case, the following circumstances have been considered:

a) in relation to the nature of the violation, it concerned cases punished more severely under Article 83, paragraph 5, of the Regulation (exercise of rights); regarding the severity of the violation, the nature of the processing concerning the exercise of rights was taken into account, in particular the right of access to data; concerning the duration of the violation, it was considered that only following the opening of the investigation did the interested party receive an appropriate response to the request (the response was ultimately provided just under eleven months after the submission of the request for the exercise of the right of access);

b) with reference to the intentional or negligent nature of the violation and the degree of responsibility of the controller, the negligent conduct of the Company, which did not provide an appropriate response to the request for the exercise of the right of access, was taken into consideration;

c) in favor of the controller, the cooperation of the Company with the Authority during the proceedings was considered.

It is also believed that the economic conditions of the offender, determined based on the revenues achieved by the Company concerning the ordinary financial statements for the year 2022, are relevant in this case, taking into account the aforementioned principles of effectiveness, proportionality, and dissuasiveness to which the Authority must adhere in determining the amount of the penalty (Article 83, paragraph 1, of the Regulation). Lastly, the amount of penalties imposed in similar cases is taken into account.

In light of the above elements and the evaluations made, it is deemed appropriate, in this specific case, to impose on C.I.EL. S.p.A. the administrative penalty of payment of an amount equal to €10,000 (ten thousand).

In this context, it is also considered...

of the type of violations ascertained that have concerned the exercise of rights under Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Regulation of the Guarantor No. 1/2019, it is necessary to proceed with the publication of this provision on the Guarantor's website. It is also deemed that the conditions referred to in Article 17 of Regulation No. 1/2019 are met.

ALL OF THE ABOVE CONSIDERED, THE GUARANTOR

notes the illegality of the processing carried out by C.I.EL. S.p.A., with registered office at Via Giulio Vincenzo Bona, 101, Rome (RM), represented by its legal representative, Tax Code 04836840589, pursuant to Article 143 of the Code, for the violation of Article 12 of the Regulation in relation to Article 15 of the Regulation;

ORDERS

pursuant to Article 58, paragraph 2, letter i) of the Regulation, C.I.EL. S.p.A. to pay the sum of €10,000.00 (ten thousand) as an administrative pecuniary sanction for the violations indicated in this provision;

COMMANDS

therefore C.I.EL. S.p.A. to pay the aforementioned sum of €10,000.00 (ten thousand), according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of subsequent enforcement actions pursuant to Article 27 of Law No. 689/1981. It is reminded that the offender retains the option to settle the dispute by paying - always according to the methods indicated in the annex - an amount equal to half of the imposed sanction, within the term provided for the submission of the appeal as indicated below (Article 166, paragraph 8, of the Code);

DISPOSES

the publication of this provision on the Guarantor's website pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Regulation of the Guarantor No. 1/2019, and considers that the conditions referred to in Article 17 of Regulation No. 1/2019 are met.

Pursuant to Article 78 of the Regulation, as well as Articles 152 of the Code and 10 of Legislative Decree No. 150/2011, an appeal against this provision may be filed with the ordinary judicial authority, with a petition submitted to the ordinary court of the place indicated in the same Article 10, within thirty days from the date of communication of this provision, or sixty days if the appellant resides abroad.

Rome, April 24, 2024

THE PRESIDENT

Stanzione

THE REPORTER

Stanzione

THE SECRETARY GENERAL

Matte